

STATE OF MICHIGAN JUDICIAL DISTRICT JUDICIAL CIRCUIT COUNTY Kent	APPLICATION FOR HUMAN TRAFFICKING VICTIM TO SET ASIDE CONVICTION(S)	CASE NO. and JUDGE 2024-0011882-SUPPLEMENTAL-FY ☒ This application includes multiple case numbers as listed in item 1.
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ORI Court address Court telephone no.

MI-
Police Report No.

THE PEOPLE OF

☐ The State of Michigan

☐ _____

v

Defendant's name, address, and telephone no.
Maria-Alejandra O'Shaughnessy-Whitfield
1188 Upper Notch Crossing Road, Apartment 14B, Grand Rapids, Michigan 49503-2214
(616) 555-0199 ext. 4417

CTN/TCN	SID
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Defendant's attorney, bar no., address, and telephone no.

Use note: If you are asking to have a conviction set aside that is not the direct result of you being a victim of a human trafficking violation, you must use MC 227.

If you are asking to have a misdemeanor marijuana related conviction set aside under MCL 780.621e, you must use form MC 227a.

1. I **request** that the court issue an order to set aside the conviction(s) listed below as provided by law. I consent to use of the nonpublic record created by MCL 780.623 to the extent authorized by MCL 780.623. A certified copy of each conviction is attached. Use additional sheet(s) if more space is necessary.

CRIME		CHARGE CODE(S) MCL citation/PACC Code	DATE OF CONVICTION	CASE NUMBER
a.	Accosting, soliciting, or inviting another to commit prostitution or an immoral act			2024-0011882-SUPPLEMENTAL-FY
b.	Receiving the earnings of a prostitute			2021-0007431-FH
c.	Keeping a house of ill fame			2022-0009118-FH
d.	Engaging the services of a prostitute			2022-0009118-FH

2. I meet the criteria to have 1 or more convictions set aside under MCL 780.621(3) and the following facts support that the convictions I am seeking to set aside are a direct result of my being a victim of a human trafficking violation:

Between 2018 and 2022 I was held and moved between three cities by the two people named in the police reports attached to this application, who took my passport on the first night and never returned it. They set the quotas, they chose the addresses, they answered the advertisements in my name, and they collected every payment. I was beaten twice for refusing and once for keeping money. Each conviction listed in item 1 happened in the course of that arrangement and as a direct result of it, and I have attached the certified record of each together with the trafficking investigation report.

*A person who is convicted of a violation of MCL 750.448, MCL 750.449, and MCL 750.450, or a local ordinance substantially corresponding to those statutes, may apply to have that conviction set aside if he or she committed the offense as a direct result of his or her being a victim of a human trafficking violation.

3. ☐ a. No other application was previously filed to set aside a conviction listed in item 1.
- ☐ b. An application was previously filed in a court to set aside the following conviction(s) listed in item 1:

CRIME	CHARGE CODE(S) MCL citation/PACC Code	DATE OF CONVICTION	CASE NUMBER	DISPOSITION

4. ☐ a. No other application was previously filed in a court to set aside other conviction(s).
- ☐ b. An application was previously filed in a court to set aside the following conviction(s):
- List only applications that have been previously filed with a court. Do not include applications you may be filing in the future - even later the same day.

CRIME	CHARGE CODE(S) MCL citation/PACC Code	DATE OF CONVICTION	CASE NUMBER	DISPOSITION

5. ☐ I have not had any convictions deferred and dismissed.
- ☐ I have had the following conviction(s) deferred and dismissed: _____
- _____

6. There are no other criminal charges pending against me.

Applicant Signature _____

Subscribed and sworn to before me on _____
Date

Deputy clerk/Notary public signature _____

My commission expires on _____
Name (type or print)

Notary public, State of Michigan, County of _____ ☐ Acting in the County of _____
☐ This notarial act was performed using an electronic notarization system or a remote electronic notarization platform.

The hearing cannot be held until the court receives the Michigan State Police report required by MCL 780.621(d)(8).

NOTICE OF HEARING

TO: Michigan Attorney General and _____
Prosecuting official

A hearing will be held on the above application to set aside conviction on _____
Date and time

at _____ before _____
Location Judge

PROOF OF SERVICE

I certify that copies of this application and certified record of conviction ☐ and notice of hearing were served on the

☐ prosecuting official on _____ by first-class mail addressed to the last-known address.
Date

☐ Attorney General on _____ by first-class mail addressed to the last-known address.
Date

I certify that copies of this application, certified record of conviction, and the fingerprint card, accompanied by the required fee, were served on the Michigan State Police on _____ by first-class mail addressed to the last-known address.
Date

I declare under the penalties of perjury that this proof of service has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

Date

Applicant/Attorney signature

Instructions for Filing and Serving an Application for Human Trafficking Victim to Set Aside Conviction(s) (Form MC 227b)

For additional instructions and an online interview that will help you create forms, go to michiganlegalhelp.org.

1. Determine whether you are eligible to apply to have your conviction set aside according to MCL 780.621 - MCL 780.621d.
2. You must file the application in the court where the conviction occurred. You must use a separate application for each court.
3. If you are asking to have a misdemeanor marihuana related conviction set aside under MCL 780.621e, you must use form MC 227a. If you are asking to have any other conviction set aside that is not the direct result of you being a victim of a human trafficking violation under MCL 780.621(1), you must use form MC 227.
4. Find out the exact date of each conviction and each charge from the court. Get a certified copy of each conviction from the clerk of the court in which you were convicted and attach it to your application. There may be a fee to obtain these certified copies.
5. Swear to the truth of the statements in this application and then sign it in the presence of the court clerk or a notary public.
6. Make five copies of all attachments and this application. Take all copies to the court clerk.
7. Depending on local practice, the clerk of the court may set a hearing date at the time of filing. If a hearing date is set at the time of filing, the clerk of the court will complete the Notice of Hearing.
8. Go to the local law enforcement agency for a fingerprint card and get fingerprinted on the applicant card (RI-008). There may be a fee for fingerprinting. Fill out the card completely.
9. Make out a money order or check to the State of Michigan for the application. The application fee is \$50.00. This fee is sent with the application packet to the Michigan State Police for processing.
10. Mail a copy of the application packet, application fee, and the fingerprint card to the Michigan State Police by first-class mail to Michigan State Police, Criminal Justice Information Center - Criminal History, PO Box 30266, Lansing, Michigan 48909.
11. Mail a copy of the application packet to the Attorney General of the State of Michigan by first-class mail to Office of the Attorney General, Assistance with Convictions and Expungements Division, PO Box 30212, Lansing, Michigan 48909.
12. Mail a copy of the application packet to the correct prosecuting official where the conviction occurred (county, city, or township) by first-class mail.
13. On both remaining copies of the application, fill in the Proof of Service on page 3. After you fill out and sign the Proof of Service, mail or take one of the remaining application packets with the completed Proof of Service to the court. Keep the other copy of the application packet for your records.